

		[an indispensable party “is not bound by a judgment in an action in which he was not joined”]; see <i>Sierra Club, Inc. v. California Coastal Com.</i> (1979) 95 Cal.App.3d 495, 501 [indispensable party “would not be bound by any judgment adversely affecting his permit and would be free to collaterally attack any such judgment”].) For all the foregoing reasons, the motion to dismiss is denied. Plaintiffs shall give notice of the ruling.
5.	2023-1365581 Morales vs. RCR Construction Services	Plaintiffs Deborah Morales’ and the Morales Family Trust’s motion to hold Defendants Mari C. Drewry and Devoted Insurance Company in contempt and request for monetary sanctions is denied. “Disobedience of any lawful judgment, order, or process of the court” is contempt of the authority of the court. (Code Civ. Proc., § 1209, subd. (a)(5).) “The substantive issues involved in a contempt proceeding are (1) the rendition of a valid order, (2) actual knowledge of the order, (3) ability to comply, and (4) willful disobedience.” (<i>Conn v. Superior Court</i> (1987) 196 Cal.App.3d 774, 784.) “A contempt proceeding [for indirect contempt] is commenced by the filing of an affidavit and a request for an order to show cause.” (<i>Cedars-Sinai Imaging Medical Group v. Superior Court</i> (2000) 83 Cal.App.4th 1281, 1286 [citing Code Civ. Proc., § 1211].) “After notice to the opposing party’s lawyer, the court (if satisfied with the sufficiency of the affidavit) must sign an order to show cause re contempt in which the date and time for a hearing are set forth.” (<i>Id.</i> at 1286.) This motion concerns Plaintiffs’ written discovery served on Defendants, to which Defendants did not respond. The Court granted motions to compel on 12/3/25 ordering Defendants to serve verified responses and pay \$2,400 in sanctions. Defendants did not pay the sanctions or serve the ordered responses. (Dariev Decl., ¶¶ 5-8.) Plaintiffs have demonstrated a valid court order, Defendants’ knowledge of the order, Defendants’ ability to render compliance, and Defendants’ willful disobedience. If the Court were to grant Plaintiffs’ motion, the next step would be to sign the OSC re contempt and hold a hearing with Defendants present. However, the Court questions what the purpose of a contempt hearing would be under the circumstances. It appears that

		Defendants are no longer participating in this litigation. (See 6/11/26 Minute Order.) While there is the outstanding sanctions order, contempt proceedings for failure to pay monetary sanctions is an unnecessary use of limited judicial resources. Plaintiffs have another, more direct option. They can enforce the sanctions order as it would a money judgment. An order for monetary sanctions is enforceable in the same way as a “money judgment;” i.e., a writ of execution may be issued by the court and levied on the property of the person sanctioned. An order imposing sanctions has the force and effect of a money judgment, and is immediately enforceable through execution. (<i>Newland v. Superior Court</i> (1995) 40 Cal.App.4th 608, 615.) The <i>Newland</i> court stated: “Weil and Brown observe that many attorneys seem to be unaware that monetary sanction orders are enforceable through the execution of judgment laws. [Citation.] These orders have the force and effect of a money judgment, and are immediately enforceable through execution, except to the extent the trial court may order a stay of the sanction. [Citation.]” (Ibid.) Accordingly, Plaintiffs’ motion to hold Defendants in contempt is denied. Plaintiffs’ motion for additional monetary sanctions is also denied for failure to comply with Code Civ. Proc., § 2023.040, which states that “[a] request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought.”
6.	2024-1396182 E.M. Capital Investment, Inc vs. Garrison	Proposed Intervenor Bay-Valley Mortgage Group’s (“BVMG”) Motion for Leave to Intervene is denied. BVMG moves under CCP section 387, for leave to intervene as a matter of right or, in the alternative, for permissive intervention, and allowing it to file a Complaint in Intervention against the defendant in this action, Brenden Garrison (“Defendant”). (ROA 124, 124.) Plaintiffs E.M. Capital Investment, Inc. and Network Funding Group, Inc. (collectively, “Plaintiffs”) oppose the motion. (ROA 159.) Intervention is the procedure through which a nonparty to an action may become a party by requesting leave of court to join the plaintiff in claiming what is sought by the complaint, unite with the defendant in resisting the plaintiff’s claim, or demand anything adverse to both parties. (Code of Civ. Proc. § 387, subd. (a).) CCP section 387(b) is a compulsory joinder provision which permits a nonparty to intervene in litigation where it claims an “interest relating to the property or transaction which is the subject of the